

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 13, 2026
8:30 AM/1:30 PM

19. MATT MORTON V. ANNE MORTON

25FL0296

Respondent filed a Request for Order (RFO) on March 19, 2026, seeking mortgage and expense hardships. The matter was originally set to be heard on May 28, 2026. Respondent filed a Request to Reschedule on May 20, 2026, as she had not served Petitioner with the moving papers. On May 21st the court rescheduled the matter to August 13, 2026, and directed Respondent to serve Petitioner with the FL-309 as well as all the original moving papers. Proof of Service shows Petitioner was served with the FL-306, FL-309, and an MC-040. There is no Proof of Service showing Petitioner was properly served with the RFO.

Petitioner filed a responsive declaration on July 27, 2026. Proof of Service shows Respondent was mail and electronically served on July 27, 2026. Petitioner asserts he was not served with the entirety of the RFO, it was missing page 2. Additionally, Petitioner objects to the requested orders, as they are not plead with specificity.

The court has read and considered the filings as outlined above. The court finds service was not proper and dops the matter from calendar on those grounds. Even if service had been proper, the court would have denied the requested orders as they are not plead with specificity, and the requests are vague and ambiguous. Respondent has provided no grounds upon which the requested relief could be granted.

All prior orders remain in full force and effect.

TENTATIVE RULING #19: THE COURT DROPS THE MATTER FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.